



Electricity Act 1972

1972 CHAPTER 17

An Act to increase the statutory limits imposed on the amounts outstanding in respect of borrowings by the Electricity Council and Electricity Boards, to authorise contributions by the Secretary of State to expenditure intended to promote employment and to make further provision for the transfer of property between Electricity Boards. [23rd March 1972]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Borrowing
powers of
electricity
authorities.
1957 c. 48.
1963 c. 59.

1.—(1) In section 15(5) of the Electricity Act 1957 (limit on borrowing powers of the Electricity Council and Electricity Boards in England and Wales) as amended by section 1 of the Electricity and Gas Act 1963, for the words—

“£3,300 million or such greater sum, not exceeding £4,400 million, as the Minister may by order specify”
there shall be substituted the words—

“£5,200 million or such greater sum, not exceeding £6,500 million, as the Secretary of State may by order specify”.

1947 c. 54.
1969 c. 1.

(2) In section 47(7) of the Electricity Act 1947 (limit on borrowing powers of the Scottish Electricity Boards), as amended by section 1 of the Electricity (Scotland) Act 1969, for the words—

“£700 million or such greater sum, not exceeding £800 million, as the Secretary of State may by order specify” there shall be substituted the words—

“£950 million or such greater sum, not exceeding £1,200 million, as the Secretary of State may by order specify.”

(3) Any power to make an order which is exercisable by virtue of this section includes power to revoke or vary any such order by a subsequent order.

(4) Any such power shall be exercisable by statutory instrument, and no order shall be made in the exercise of any such power unless a draft of the order has been laid before the Commons House of Parliament and has been approved by resolution of that House.

(5) The reference in section 2(1) of the Electricity and Gas Act 1963 (Government advances) to the limits on borrowing imposed by the relevant enactments shall be taken as a reference to all relevant limits on borrowing for the time being in force under the enactments relating to electricity or gas.

2.—(1) There may be defrayed out of moneys provided by Parliament such sums not in the aggregate exceeding £25 million as may be required by the Secretary of State for the purpose of making with the approval of the Treasury contributions towards expenses to which this section applies.

Contributions
by Secretary
of State
towards
expenditure
intended
to promote
employment.

(2) This section applies—

- (a) to expenses incurred by the Electricity Council or any Electricity Board in or in connection with the carrying out of any project which is commenced before 1st April 1974 and which, pursuant to an agreement entered into with the Secretary of State with a view to promoting employment (whether or not in the electricity industry) is, in whole or in part, commenced or carried out earlier than it would have been but for the agreement, and
- (b) to expenses incurred by any of those bodies in or by reason of the purchase before that date of materials for any project, being a purchase which, pursuant to any such agreement, was effected earlier than it would have been but for the agreement.

(3) This section applies to expenses incurred before as well as after the passing of this Act.

(4) In this section “Electricity Board” has the same meaning as in the Electricity Act 1947.

1947 c. 54.

Transfer of
property
between
Electricity
Boards.

1947 c. 54.

Citation,
construction
and repeals.

3. In section 19(1)(a) of the Electricity Act 1947 (power of transfer which is restricted to property vested by virtue of that Act or the Electricity Act 1957) the words "by virtue of this Act or the Electricity Act 1957" shall be omitted.

4.—(1) This Act may be cited as the Electricity Act 1972; and the Electricity (Scotland) Acts 1943 to 1969 and this Act (in so far as it applies to Scotland) may be cited together as the Electricity (Scotland) Acts 1943 to 1972.

(2) Except where the context otherwise requires, references in this Act to any enactment are references thereto as amended by any other enactment, including any enactment contained in this Act.

(3) The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULE

REPEALS

Section 4.

Chapter	Short Title	Extent of Repeal
10 & 11 Geo. 6. c. 54.	The Electricity Act 1947.	In section 19, in subsection (1)(a) the words from "by virtue" to "1957", and in subsection (2) the words from "and the reference" to "1954".
2 & 3 Eliz. 2. c. 60.	The Electricity Re-organisation (Scotland) Act 1954.	In Part II of Schedule 1, in the entry relating to section 19 of the Electricity Act 1947, the words from "and the reference" to "1954".
5 & 6 Eliz. 2. c. 48.	The Electricity Act 1957.	In Part I of Schedule 4, in the entry relating to section 19(1) of the Electricity Act 1947, the words from "and after" to "1957".
1963 c. 59.	The Electricity and Gas Act 1963.	Section 1. In section 2(2) the words from "and in the preceding" to the end of the subsection.
1968 c. 39.	The Gas and Electricity Act 1968.	Section 1(3)(b).
1969 c. 1.	The Electricity (Scotland) Act 1969.	Section 1.